



Seraphyn Care Solutions LLC.

Agreement

Health Care General Staffing Agreement

This Supplemental Staffing Agreement is made and entered into as of the later of _____, 20____, or the execution of the Agreement by both parties by and between Seraphyn Care Solutions LLC, with its principal office located at _____ (“SERAPHYN CARE”), and _____, with its principal office located at _____ (“CLIENT”).

R E C I T A L S:

A. SERAPHYN CARE is duly authorized to operate as a temporary staffing company and direct hire recruiting in the business of providing supplemental staffing to medical care providers such as CLIENT (“Services”).

B. CLIENT desires SERAPHYN CARE to provide, when requested and on a nonexclusive basis, supplemental health care staffing services.

NOW, THEREFORE, for and in consideration of the recitals above and the mutual covenants and conditions contained herein, Seraphyn Care Solutions LLC and CLIENT agree as follows:

Seraphyn Care's Duties and Responsibilities

1. SERAPHYN CARE will, either directly or through its Agent,
 - a. Recruit, screen, interview, and assign its employees Assigned Employees to perform the type of work described on Exhibit A under CLIENT’s supervision at the locations specified on Exhibit A.
 - b. Pay Assigned Employees’ wages and provide them with the benefits that SERAPHYN CARE offers to them.
 - c. Pay, withhold, and transmit payroll taxes; provide unemployment insurance and workers’ compensation benefits; and handle unemployment and workers’ compensation claims involving Assigned Employees.
 - d. SERAPHYN CARE will, either on its own or through its Agent, maintain the following for each of its Assigned Employees:
 - (1) A completed application that includes education, training, skills, specialties, and preferences
 - (2) Two recent work references
 - (3) Standard Negative tuberculosis and drug tests
 - (4) Dates hired and oriented
 - (5) Job description
 - (6) A copy of current license, registration, or certification, as applicable
 - (7) U.S. Citizenship and Immigration Services Form I-9 and documents establishing identity and work authorization
 - e. Cover Seraphyn Care's staffing operations for CLIENT with at least the following types and limits of insurance or other coverage:
 - (1) Workers' compensation benefits or coverage on the Assigned Employees, in amounts no less than required by law
 - (2) Commercial general liability insurance, including personal injury, contractual liability, and property damage, with limits of \$1 million with \$3 million aggregate

- (3) Professional liability insurance with limits of \$1 million with \$3 million aggregate
- (4) On CLIENT's request, SERAPHYN CARE will give CLIENT certificates of insurance coverage.

- f. Not discriminate in the assignment of its Assigned Employees on the basis of race, religion, color, national origin, sex, age, disability, veteran status, or any other class or characteristic protected under applicable law.
- g. Please note, as referenced in the addendum, SERAPHYN CARE may utilize a third-party ("Agent") for its back office, and as such, that third party will be the employer of record of the employees and all that is related to that.
- h. Ensure that all applicable state regulations relating to employment of Assigned Employees shall be complied with.

CLIENT's Duties and Responsibilities

2. CLIENT will

- a. Properly supervise Assigned Employees performing its work and be responsible for its business operations, products, services, and intellectual property.
- b. Properly supervise, control, and safeguard its premises, processes, or systems, and not permit Assigned Employees to operate any vehicle or mobile equipment or entrust them with unattended premises, cash, checks, keys, credit cards, merchandise, confidential or trade secret information, negotiable instruments, or other valuables without Seraphyn Care's express prior written approval or as strictly required by the job description provided to WORK WISE.
- c. Provide Assigned Employees with a safe work site and provide appropriate information, training, and safety equipment with respect to any hazardous substances or conditions to which they may be exposed at the work site.
- d. Not change Assigned Employees' job duties, departments, or units in which Assigned Employees will be operating, without Seraphyn Care's express prior written approval.
- e. Exclude Assigned Employees from the CLIENT's benefit plans, policies, and practices, and not make any offer or promise relating to Assigned Employees' compensation or benefits.
- f. Agree that Seraphyn Care's duty to fill assignments is subject to the availability of qualified Assigned Employees.
- g. Orient Assigned Employees to its facility and its rules and regulations, including but not limited to the physical layout of and any equipment in any unit or work area to which such Assigned Employees are assigned.
- h. Allow Assigned Employees to attend appropriate facility staff development programs.
- i. Promptly notify SERAPHYN CARE of any problems regarding Assigned Employees. CLIENT shall notify SERAPHYN CARE promptly of the initiation of any complaint, inquiry, investigation, or review with or by any licensing or regulatory authority; peer review organization; CLIENT committee; or other committee, organization, or body that reviews quality of medical care, which

complaint, inquiry, investigation, or review CLIENT is aware of and directly or indirectly relates to or pertains to any Assigned Employee, either in any specific instance or in general.

- j. Make available to SERAPHYN CARE copies of all documentation about problems or incidents in which Assigned Employees are involved.
- k. Not discriminate against any Assigned Employee on the basis of race, religion, color, national origin, sex, age, disability, veteran status, or any other class or characteristic protected under applicable law.
- L. Not violate any OSHA, any privacy law including HIPAA, rule, or regulation whether federal, state, or local in nature, and adhere to all applicable laws regarding its business. Also, ensure that facility contain any COVID or other infectious disease outbreaks and ensure a safe environment for the Assigned Employee.
- m. CLIENT must also agree to make sure Assigned Employees have the necessary equipment and supplies to perform the Services.
- n. CLIENT will be responsible for any costs of additional or more extensive background screening or drug tests.

Payment Terms, Bill Rates, and Fees

- 3. CLIENT will pay SERAPHYN CARE through its Agent (or in the event of fees, directly) and will be invoiced via Agent (or in the event of fees, directly) for its performance at the rates set forth on Exhibit A and will also pay any additional costs or fees set forth in this Agreement. SERAPHYN CARE through its Agent will invoice CLIENT for services provided under this Agreement on a weekly basis. Payment is due **within 10 days of** receipt of invoice. Invoices will be supported by the pertinent time sheets or other agreed system for documenting time worked by the Assigned Employees. CLIENT's signature or other agreed method of approval of the work time submitted for Assigned Employees certifies that the documented hours are correct and authorizes SERAPHYN CARE and its Agent to bill CLIENT for those hours. If a portion of any invoice is disputed, CLIENT will pay the undisputed portion. CLIENT agrees to furnish SERAPHYN CARE with documentation to support any disputed invoice amount. CLIENT agrees to pay net 30 of invoice date and to pay interest on any unpaid balances after 30 days from the date of receipt at the compounded rate of 1.5% per month (Annual Percentage Rate of 18%) or the maximum legal rate, whichever is higher, calculated from the date of receipt. In the event of non-payment continues beyond 60 days from the date of receipt of the invoice, an additional interest of 1.5%. CLIENT agrees to pay all expenses and costs, including interest and attorneys' fees, which may be incurred by SERAPHYN CARE or its Agent to collect amounts owed under this Agreement. In the event of collection of monies due, CLIENT will also be liable for any collection fees, attorney fees and interest, the maximum as allowed by law for any claim that goes in Seraphyn Care's favor.
- 4. Assigned Employees are presumed to be nonexempt from laws requiring premium pay for overtime, holiday work, or weekend work("premium work time"). SERAPHYN CARE will charge CLIENT special rates for premium work time only when an Assigned Employee's work on assignment to CLIENT, viewed by itself, would legally require premium pay and CLIENT has authorized, directed, or allowed the Assigned Employee to work such premium work time. CLIENT's special billing rate for premium hours will be the same multiple of the regular billing rate as SERAPHYN CARE is required to apply to the Assigned Employee's regular pay rate.

5. If CLIENT uses the services of any Assigned Employee as its direct employee, as an independent contractor, or through any person or firm other than SERAPHYN CARE after their assignment to Client, Client must notify SERAPHYN CARE and pay SERAPHYN CARE a conversion fee in the amount of 20% of the Annual Compensation if conversion is within 180 days of assignment, and, if beyond 180 days and prior to a year, CLIENT will pay 10% of the Annual Compensation as conversion fee. The Annual Compensation shall be calculated at hourly rate * 40 hours * 4 weeks * 12 months. If the Assigned Employee is in any other rate (e.g. Weekly or bi-weekly or monthly) other than hourly rates, the same shall be converted to hourly rate for the calculation of Annual Compensation.

Confidential Information

6. Both parties may receive information that is proprietary to or confidential to the other party or its affiliated companies and their clients. Both parties agree to hold such information in strict confidence and not to disclose such information to third parties or to use such information for any purpose whatsoever other than performing under this Agreement or as required by law. No knowledge, possession, or use of CLIENT's confidential information will be imputed to SERAPHYN CARE as a result of Assigned Employees' access to such information. The provisions set forth herein shall survive expiration or other termination of this Agreement, regardless of the cause of such termination. For the avoidance of doubt, rates and information are considered confidential information under this Agreement. In no circumstance should the CLIENT discuss the same with Assigned Employee.

Cooperation

7. The parties agree to cooperate fully and to provide assistance to the other party in the investigation and resolution of any complaints, claims, actions, or proceedings that may be brought by or that may involve Assigned Employees.

Indemnification and Limitation of Liability

8. To the extent permitted by law, SERAPHYN CARE will defend, indemnify, and hold CLIENT and its parent, subsidiaries, directors, officers, agents, representatives, and employees harmless from all claims, losses, and liabilities including reasonable attorneys' fees to the extent caused by Seraphyn Care's breach of this Agreement; its failure to discharge its duties and responsibilities set forth in paragraph 1; or the negligence, gross negligence, or willful misconduct of SERAPHYN CARE or Seraphyn Care's officers, employees, or authorized agents in the discharge of those duties and responsibilities.
9. To the extent permitted by law, CLIENT will defend, indemnify, and hold SERAPHYN CARE and its parent, subsidiaries, directors, officers, agents, representatives, and employees harmless from all claims, losses, and liabilities including reasonable attorneys' fees to the extent caused by CLIENT's breach of this Agreement; its failure to discharge its duties and responsibilities set forth in paragraph 2; or the negligence, gross negligence, or willful misconduct of CLIENT or CLIENT's officers, employees, or authorized agents in the discharge of those duties and responsibilities.
10. Neither party shall be liable for or be required to indemnify the other party for any incidental, consequential, exemplary, special, punitive, or lost profit damages that arise in connection with this Agreement, regardless of the form of action whether in contract, tort, negligence, strict liability, or otherwise and regardless of how characterized, even if such party has been advised of the possibility of such damages. Except for any liabilities for breach of confidential obligations, non-payment of fees as provided in clause 3, the conversion fee as provided in clause 5 and/or for payments under non-solicitation in clause 12, of this Agreement, in no event shall any party's total liability arising under or relating to this Agreement exceed the amounts paid or payable by CLIENT to SERAPHYN CARE under this Agreement.

11. As a condition precedent to indemnification, the party seeking indemnification will inform the other party within seven (7) Calendar days after it receives notice of any claim, loss, liability, or demand for which it seeks indemnification from the other party; and the party seeking indemnification will cooperate in the investigation and defense of any such matter.

Non-Solicitation:

12. CLIENT agrees not to directly or indirectly employ or engage as an independent contractor any staff employee of SERAPHYN CARE during the term of this Agreement and for a period of one year thereafter without the prior written consent of the SERAPHYN CARE and will result in CLIENT paying agency a fee in the amount of 25% of the agency employee's Annual Compensation with the new employer. SERAPHYN CARE agrees not to directly solicit staff employees from the CLIENT for the duration of this Agreement. Notwithstanding the foregoing, this restriction does not apply to staff employees of CLIENT who contact SERAPHYN CARE on their own for opportunities (i.e., in response to a mass mailing, general advertisement, Web site recruitment, etc.).

Miscellaneous

13. Provisions of this Agreement, which by their terms extend beyond the termination or nonrenewal of this Agreement, will remain effective after termination or nonrenewal.
14. No provision of this Agreement may be amended or waived unless agreed to in a writing signed by the parties.
15. Each provision of this Agreement will be considered severable, such that if any one provision or clause conflicts with existing or future applicable law or may not be given full effect because of such law, no other provision that can operate without the conflicting provision or clause will be affected.
16. This Agreement and the Exhibits attached to it contain the entire understanding between the parties and supersede all prior agreements and understandings relating to the subject matter of the Agreement.
17. The provisions of this Agreement will inure to the benefit of and be binding on the parties and their respective representatives, successors, and assigns.
18. The failure of a party to enforce the provisions of this Agreement will not be a waiver of any provision or the right of such party thereafter to enforce each and every provision of this Agreement.
19. CLIENT will not transfer or assign this Agreement without Seraphyn Care's written consent.
20. Any notice or other communication will be deemed to be properly given when sent (a) via overnight mail to _____ or (b) via facsimile or electronic mail to facsimile number or electronic email address set forth herein used by the parties in the regular course of dealing hereunder.
21. Neither party will be responsible for failure or delay in performance of this Agreement if the failure or delay is due to labor disputes, strikes, fire, riot, war, terrorism, pandemic, epidemic, acts of God, or any other causes beyond the control of the nonperforming party.

Term of Agreement

22. This Agreement will be ongoing from the first date on which both parties have executed it. The Agreement may be terminated by either party upon thirty (30) days' written notice to the other party,

except that (a) if a party becomes bankrupt or insolvent, or discontinues operations, the other party may immediately terminate this Agreement upon written notice, and (b) if CLIENT fails to make any payments as required by the Agreement, the SERAPHYN CARE may terminate the agreement upon three (3) days' written notice with no liability to the SERAPHYN CARE until payment is made.

Choice of Law

23. This agreement will be governed by and construed in accordance with the laws of the state of California, without reference to any conflicts of law principles thereof. First however, in the event of a dispute, the parties agree to try to settle amicably between themselves. If the dispute cannot be settled through negotiation, the parties agree first to try in good faith to settle the dispute by mediation administered by the American Arbitration Association under its Commercial Mediation Procedures before resorting to arbitration, litigation, or some other dispute resolution procedure. In the event of litigation, Parties agree to submit to the jurisdiction and litigate in the courts of Los Angeles County, California or the District of California, Federal Court.

Nature of Relationship

24. The services that SERAPHYN CARE will render to CLIENT under this Agreement will be as an independent contractor. Nothing contained in this Agreement will be construed to create the relationship of principal and agent, or employer and employee, between SERAPHYN CARE and CLIENT.

Establishing Your Account

25. A completed credit application may be required prior to the start of service. SERAPHYN CARE will/may run a Credit Check/Report for verification of the CLIENT's sound credit history.
26. The headings of the paragraphs of this Agreement are inserted solely for the convenience of reference. They will in no way define, limit, extend, or aid in the construction of the scope, extent, or intent of this Agreement.

Authorized representatives of the parties have executed this Agreement below to express the parties' agreement to its terms.

CLIENT	SERAPHYN CARE HEALTHCARE STAFFING
Signature	Signature
Printed Name	Printed Name
Title	Title
Date	Date

Exhibit A
Bill Rates Schedule

Job Title	Shift	Location	Hourly Bill Rate
CNA	ANY		
LVN	ANY		
RN	ANY		

Minimum Hours Per Day

If CLIENT limits an Assigned Employee's workday to fewer than 8 hours, SERAPHYN CARE may deem that day to include 8 hours of time worked and may bill CLIENT 8 hours if SERAPHYN CARE pays the Assigned Employee for the 8 hours.

Minimum Hours Per Week

SERAPHYN CARE requires that a minimum of 36-40 hours per week per Assigned Employee ("Minimum Fee") be billed CLIENT regardless of actual time worked. Therefore, if the total fees for any one week are for less than the Minimum Fee, SERAPHYN CARE will bill CLIENT and CLIENT agrees to pay the Minimum Fee. The Minimum Fee shall be reduced on a pro rata basis if the Assigned Employee working the assignment voluntarily misses work for any reason (e.g., if the Assigned Employee calls in sick, fails to report to work, etc.).

CLIENT will make every reasonable effort to request an Assigned Employee at least twelve (12) hours prior to the Assigned Employee's reporting time. Any cancellation prior to 1 hour before the start of the shift will incur a 4-hour charge, at minimum. If the coverage ends (e.g. the patient dies) before the 4th hour, a minimum of 4 hours will be charged, and if the coverage ends after the 4th but before the 8th hour, Seraphyn Care is entitled to bill the entire minimum shift. In such a case, CLIENT may, at its discretion, use the services of such Assigned Employee for the hours that were billed to CLIENT.

Mileage Reimbursement

If the Nurse is required to travel to a client location other than their originally assigned location during a scheduled shift, the Nurse shall be reimbursed for mileage at the current IRS standard mileage rate of \$0.70 per mile. Reimbursement shall apply only to additional miles traveled beyond the distance from the Nurse's home to the originally assigned location.

CLIENT	SERAPHYN CARE SOULUTIONS LLC
Signature	Signature
Printed Name	Printed Name
Title	Title
Date	Date

Client Services Addendum

This is an Addendum to an Agreement between _____ ("Client") and _____ ("Partner") effective _____ whereby Partner has agreed, among other things, to provide temporary or contract workers (the "Associate") to the Client (the "Assignment"). Partner has outsourced certain back office processing functions related to the Assignment to Back Office Staffing Solutions, LLC (the "Company"). The Company is the Associate's employer of record, or agent of record if classified as an independent contractor. The Company will assume certain responsibilities for the Associate, including processing payroll and federal and state payroll tax filings and maintaining applicable insurance coverage for the Associate.

The Company will Invoice Client on behalf of Partner. Client agrees that the time submitted via applicable timecard and/or time capture system has been reviewed and approved by the Client. Approval of the timecard will expressly serve as a) Client's approval of the hours worked and the work performed, b) authorization of the Company to pay the wages of the Associate and c) authorization of the Company to invoice the Client for those hours worked at the bill rate agreed for the Assignment and for any stipends or expense reimbursements. The Client agrees to submit payment of invoices directly to the Company.

Payments should be payable to Back Office Staffing Solutions, LLC and sent to:

ELECTRONIC PAYMENTS

Bank of America, N.A.
100 W. 33rd Street
4th Floor
New York, NY 10001

ABA/Routing for ACH :	111000012
ABA/Routing for WIRES :	026009593
SWIFT:	BOFAUS3N
Account No.:	4451664606

PAYMENTS VIA MAIL

REV Capital (California) Inc.
P.O. Box 741791
Los Angeles, CA 90074-1791

PAYMENTS VIA OVERNIGHT DELIVERY

REV Capital Inc.
2939 Larkin Avenue
Clovis, CA 93612

Email Remittance Advice to: remit@backofficenow.com

(signature page to follow)

Back Office Staffing Solutions, LLC
Company

Signature

Mary Hutchins
Name

Chief Operating Officer
Title

CLIENT:

Signature

Name

Title

PARTNER:

Signature

Name

Title

**NOTICE OF ASSIGNMENT AND DIRECTION OF PAYMENT
BACK OFFICE STAFFING SOLUTIONS LLC**

Dear Client (Attention: Accounts Payable Manager/ Supervisor):

We are pleased to inform you that we, Back Office Staffing Solutions, LLC (the "Vendor") have assigned our Accounts Receivable to REV Capital (California) Inc. in accordance with Article 9 of the Uniform Commercial Code. This will enable us to accelerate the growth and development of our business, while maintaining a higher standard of customer service. Effective immediately all payments due to Vendor are to be made payable to Back Office Staffing Solutions, LLC and remitted directly to:

ELECTRONIC PAYMENTS

Bank of America, N.A.

100 W. 33rd Street

4th Floor

New York, NY 10001

ABA/Routing for **ACH**: 111000012

ABA/Routing for **WIRES**: 026009593

SWIFT: BOFAUS3N

Account No.: 4451664606

PAYMENTS VIA MAIL

REV Capital (California) Inc.

P.O. Box 741791, Los Angeles, CA 90074-1791

Phone: 559-400-8001 Fax: 559-400-8002

Please record the receipt of this Notice of Assignment and Direction of Payment in your Accounts Payable office. The undersigned hereby irrevocably directs and authorizes you to make all payments on Accounts Receivable owed to Vendor payable to REV Capital or to whomever REV Capital may so direct. By acknowledging receipt of this Notice of Assignment and Direction of Payment, and as reaffirmed by your approval or verification of each invoice submitted to you by REV Capital, you irrevocably agree to waive all defenses, claims, rights of set-off or retainage, and remedies of any kind and for any reason whatsoever against REV Capital and that any and all past, present, and future debts owing by Vendor to Client shall be the sole liability and responsibility of Vendor and not of REV Capital.

This Notice of Assignment and Direction of Payment will continue in force unless and until you are otherwise notified by REV Capital. Payment to anyone other than REV Capital or its designee will not constitute payment of Accounts Receivable owed to Vendor. REV Capital is relying and will continue to rely on the validity of Accounts submitted to it in determining what advances, if any, to make to Vendor. Therefore, if there are presently any adjustments, holdbacks, set-offs, reductions or qualifications of any kind applicable to Vendor's existing Accounts, or if any should arise in the future, please immediately notify REV Capital of their existence and specific nature.

Please acknowledge the receipt of this Notification by completing the assignment and returning a copy by fax or mail to the attention of REV Capital, copied herein.

Yours truly,

BACK OFFICE STAFFING SOLUTIONS LLC



Neil Stuart Lebovits
Chief Executive Officer

Acknowledged and Agreed by Client:

Signature: _____

Print Name _____

Client Name: _____

